

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lydia Woolley	Team: Squad #13	CCRB Case #: 202106307	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 10/18/2021 1:52 PM	Location of Incident: Over the phone	18 Mo. SOL 4/18/2023	Precinct: 84
Date/Time CV Reported Mon, 10/18/2021 3:16 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/18/2021 3:16 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Samantha Sturman	03035	947521	084 PCT
2. PO Arthur Sturman	09013	961336	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Arthur Sturman	Abuse: Police Officer Arthur Sturman threatened § 87(2)(b) with the use of force.	A . Substantiated
B . DTS Samantha Sturman	Abuse: Detective Samantha Sturman threatened § 87(2)(b) with the use of force.	B . Substantiated
C . PO Arthur Sturman	Discourtesy: Police Officer Arthur Sturman spoke discourteously to § 87(2)(b)	C . Substantiated
D . DTS Samantha Sturman	Discourtesy: Detective Samantha Sturman spoke discourteously to § 87(2)(b)	D . Substantiated

Case Summary

On October 18, 2021, § 87(2)(b) called the CCRB and filed this complaint. § 87(2)(b) filed a duplicate complaint with the Office of the Attorney General (“OAG”), which the CCRB received on March 7, 2022. This case was added to the agency’s sensitive case list due to an article about this incident being posted to § 87(2)(b) (**Board Review 04**).

On October 18, 2021, § 87(2)(b) filed seven 311 complaints. Two minutes later, Detective Samantha Sturman of the 84th Precinct and Police Officer Arthur Sturman of the 60th Precinct both participated in sending § 87(2)(b) a text message which read, “Keep fucking around” (**Allegations A-B: Abuse of Authority, substantiated; Allegations C-D: Discourtesy, substantiated**). No arrest or summons resulted from this incident.

A screenshot of the text, provided by § 87(2)(b) is in IA #16 (**Board Review 01**). There is no body-worn camera (BWC) footage of this incident. The nature of the incident did not require the use of BWC as per the Patrol Guide.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Arthur Sturman threatened § 87(2)(b) with the use of force.

Allegation (B) Abuse of Authority: Detective Samantha Sturman threatened § 87(2)(b) with the use of force.

Allegation (C) Discourtesy: Police Officer Arthur Sturman spoke discourteously to § 87(2)(b)

Allegation (D) Discourtesy: Detective Samantha Sturman spoke discourteously to § 87(2)(b)

On the morning of this incident, a news article by § 87(2)(b) was posted to § 87(2)(b) which described a previous incident in which Det. Sturman, identified in the article by name, rank, and command, phoned § 87(2)(b) § 87(2)(b) and called him a “dickhead” § 87(2)(b) (**Board Review 05**). The article included a transcription of the call and noted two other calls between § 87(2)(b) and officers (investigated in CCRB § 87(2)(b) § 87(2)(b)).

§ 87(2)(b) said he filed approximately seven complaints with 311 on the afternoon of the incident via the 311 app about cars parked illegally on Jay Street in Brooklyn (**Board Review 02**). Two minutes after submitting his last complaint, he received a text message to his cell phone from an unfamiliar number, § 87(2)(b). The text read, “Keep fucking around,” which he took to be a threat and intimidation to stop him from submitting 311 complaints. § 87(2)(b) believed the text to be from a police officer because he received it soon after filing the 311 complaints, the § 87(2)(b) article mentioned above had recently been posted, and his cell phone number was not publicly listed anywhere, so the only people with access to his cell phone number were the officers who review his 311 complaints. § 87(2)(b) provided a screenshot of the text message to the CCRB (**Board Review 01**).

On October 19, 2021, another § 87(2)(b) article by § 87(2)(b) was posted describing the text message involved in this incident consistently with § 87(2)(b) statement (though he remained anonymous). The article said § 87(2)(b) called § 87(2)(b) and the man who answered refused to provide information regarding this incident or his name (**Board Review 04**).

CLEAR searches for the phone number yielded negative results (**Board Review 03**). A FoneFinder

search found that the phone number's carrier is Inteliquent (**Board Review 06**), who disclosed pursuant to subpoena that the phone number was sold to TextNow, Inc. (**Board Review 20**). Pursuant to subpoena, TextNow provided information associated with the phone number, including an email address, § 87(2)(b) username, § 87(2)(b) and the message log for the incident date, which was consistent with § 87(2)(b) screenshot (**Board Review 07**). A CLEAR search for the email address failed to provide identifying information for the owner (**Board Review 08**). However, TextNow identified that the account associated with that phone number was created in September of 2021, and provided the IP address, a unique string of numbers which labels a device's connection to an internet provider, on which the account was registered (TextNow was unable to provide the IP address on which the text message was sent).

A search of the IP address found that the TextNow account holder was connected to the internet in Brooklyn through the internet service provider Optimum Online when they registered their TextNow account (**Board Review 09**). Pursuant to subpoena, Optimum disclosed that the subscriber to the unique IP address was § 87(2)(b) and the associated address was § 87(2)(b) in Brooklyn (**Board Review 10**). A CLEAR search found that § 87(2)(b) relatives included Det. Sturman and PO Sturman (**Board Review 11**). § 87(2)(b) duplicate complaint filed with the OAG noted that their investigation also found that the TextNow account used to send the text message was registered at § 87(2)(b) address (**Board Review 21**).

Det. Sturman said she did not "know anything" about this incident, has never written § 87(2)(b) a text message, and has never received a text message from him (**Board Review 12**). On the morning of the incident, an article about Det. Sturman's phone call with § 87(2)(b) was presented during roll call, which her memo book notes occurred at 7:24 a.m. (**Board Review 13**). Det. Sturman said she was on her lunch break at the 84th Precinct stationhouse at the time the text message was sent, which is consistent with her memo book. Det. Sturman said she was not familiar with TextNow and had never used it. She confirmed that her address is § 87(2)(b) in Brooklyn. She lives with PO Sturman, who is her brother, and no one else. Her mother, § 87(2)(b) does not live at the address anymore. Det. Sturman has never discussed § 87(2)(b) with PO Sturman or anyone else who has access to her home. Det. Sturman's aforementioned phone call with § 87(2)(b) was the last time she made contact with him. At that time, she used the phone number listed on the 311 app, which provides 311 complainants' contact information to any officer in the precinct.

PO Sturman said he was off duty on the incident date (**Board Review 22**), which is consistent with his memo book (**Board Review 14**). He said he had never encountered § 87(2)(b) was not familiar with § 87(2)(b) phone number, and had never written a text message to § 87(2)(b) or received one from him. He lives at § 87(2)(b) in Brooklyn, with Det. Sturman and no one else. In September of 2021, no one aside from him and Det. Sturman had access to their home internet network. He said he had never discussed § 87(2)(b) with Det. Sturman or anyone else. He had never used TextNow, did not have an account, and was not familiar with the email address § 87(2)(b). He was familiar with news coverage of the incident that alleged Det. Sturman had committed a discourtesy against § 87(2)(b). He did not remember the circumstances under which he learned of the article and did not speak to Det. Sturman about the article. He has access to the 311 app, which he uses during his tour when he responds to 311 complaints.

NYPD Patrol Guide, Procedure 200-02, states that officers must render their services with courtesy and civility (**Board Review 15**). Gratuitous use of profane language is unprofessional and constitutes misconduct unless an officer is attempting to maintain control of a stressful encounter DCT Case #2018-18950 (**Board Review 16**). NYPD Patrol Guide, Procedure 221-01, states that

force may be used when it is reasonable to ensure someone's safety or life, place a person in custody, or prevent escape from custody (**Board Review 17**).

Det. Sturman and PO Sturman denied texting § 87(2)(b). However, subpoenas revealed that the account used to text him was registered at their apartment, where they acknowledged they live together and with no one else. Further, though they said they had not discussed § 87(2)(b) with each other, they both acknowledged being aware of the news coverage about § 87(2)(b) past interaction with Det. Sturman, which was released and presented at Det. Sturman's roll call the morning of this incident. Additionally, Det. Sturman had access to § 87(2)(b) phone number per their previous interaction, and PO Sturman also had access through the 311 app.

§ 87(2)(g)

Further, although PO Sturman denied having a TextNow account, considering § 87(2)(b) is part of the account username and email address, that a man answered when § 87(2)(b) called the phone number associated with the account, and that PO Sturman is the only man who lived in the apartment and had access to the internet where the account was registered at the time, §

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§ 87(2)(b) interpreted the text message to be a threat due to his multiple prior incidents with officers from the 84th Precinct related to his 311 complaints which were covered in the news and the fact that he filed 311 complaints minutes before receiving the text message. § 87(2)(g)

it is thus recommended that **Allegations A-B** be closed as **substantiated**.

§ 87(2)(g)

it is recommended that **Allegations C-D** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)

- Det. Sturman has been a member of service for 13 years and has been a subject in four CCRB complaints and seven allegations, none of which were substantiated.

○ § 87(2)(g)

- PO Sturman has been a member of service for six years and has been a subject in one CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of January 27, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 18**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 13

Investigator:	<u>Lydia Woolley</u>	<u>Inv. Lydia Woolley</u>	<u>05/26/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Laura Kastner</u>	<u>IM Laura Kastner</u>	<u>05/27/2022</u>
	Signature	Print Title & Name	Date